

		Also on calendar is a Case Management Conference. The parties should be prepared to discuss case status, status of the parties and scheduling a trial. Counsel for plaintiffs is to give notice of this ruling.
2	Ameris Bank v. Physi-Khul Therapy LLC	The motions to be relieved as counsel of record for defendants Physi-Khul Therapy LLC and Alex John Kuhlman (collectively, "Defendants") filed by attorney Jeffrey P. Boykin are CONTINUED TO JUNE 2, 2025, AT 2:00 P.M. IN DEPARTMENT N17. Although there appears to be good cause to grant the relief requested on the merits, there is no proof of service filed for these motions. "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." (C.R.C. 3.1362(d).) Although counsel's declaration states that Defendants were served by mail at their last known address, the statements in counsel's declaration are not a proper or adequate proof of service. (See Code Civ. Proc., § 1013a.) No oppositions were filed. It is thus unclear if Defendants and Plaintiff's counsel received proper notice of these motions. The motions are therefore continued as stated above. Moving counsel is ordered to file a proof of service showing Defendants and all parties were timely served with the notice of motion and motion, the declaration, and the proposed order. Said proof of service is to be filed at least 5 court days prior to the hearing. Moving counsel is ordered to give notice of this ruling.
3	Miltimore v. DCS Management LLC	O/C
4	Gee vs. Gee	Plaintiff Tamara Gee, as Executor of the Estate of Etta Wong's ("Plaintiff") Motions for Preliminary Injunctions ("Motions") against defendants Daniel Gee ("Daniel" individually) and Sagebrush Investments ("SI" individually; "Defendants" together with Daniel) are GRANTED. The court finds a preliminary injunction ("PI") should be issued in this instance. The burden is on <i>the moving party</i> to show all elements necessary to support issuance of a preliminary injunction. [Emphasis added.] (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App. 4th 1452, 1481.) The moving party has the burden to show that it is reasonably probable it will prevail on the merits. (<i>San Francisco Newspaper Printing Co. v. Superior Court</i> (1985) 170 Cal.App.3d 438, 442; Weil & Brown, ¶ 9:632.1.) Additionally, "[i]n deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: [1] the likelihood the moving party ultimately will prevail on the merits, and [2] the relative interim harm to the parties from the issuance or nonissuance of the injunction." (<i>Whyte v. Schlage Lock Co.</i> (2002) 101 Cal.App.4th 1443, 1449–1450.)

The court finds Plaintiff has met her initial burden on each of the remaining five causes of action ("COA") alleged in the Complaint by showing there is a reasonable probability Plaintiff will prevail on each COA. Plaintiff has shown by evidence that defendant Daniel as an individual, and in his capacity as a general partner of SI and defendant SI have prohibited decedent Etta Wong ("Wong") while she was living and Wong's estate thereafter from obtaining their share of profits under the SI partnership agreement ("Agreement"). (Civ. Proc. Code § 527(a); Gee Decl., Ex. A.)

COA No. 1 – Declaratory Relief

"Declaratory relief generally operates prospectively to declare future rights, *rather than to redress past wrongs*." [Emphasis added.] *Id.* "A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties under a written instrument and requests that these rights and duties be adjudged by the court." (*Maguire v. Hibernia Sav. & Loan Soc.* (1944) 23 Cal. 2d 719, 728.) "The purpose of a declaratory judgment is "to serve some practical end in quieting or stabilizing an uncertain or disputed jural relation."" (*Id.*, at 729.)

Plaintiff has shown there is a proper subject for declaratory relief (the winding up of SI and proper distribution of assets) and an actual controversy between the parties relating to their rights of SI's partnership assets. There is a question of how Wong's death affected the trust, whether the buy-out offer was proper or if SI was required to be wound up and the remaining assets disbursed between the estate and Daniel. (Corp. Code §§ 16202, 16601, 16801, 16807(b); *Corrales v. Corrales* (2011) 198 Cal. App. 4th 221, 227.) Defendants contention that Daniel can simply convert SI to a sole proprietorship does not appear well taken. (Corp. Code § 16902.)

Plaintiff has "prevailed" on this COA by showing there is an actual controversy as to Plaintiff's rights to receive funds from dissolution of SI due to Wong's disassociation by death, the legal requirement for the partnership to dissolve when there is only one remaining partner, and whether a "buyout" is permitted.

COA No. 2 – Breach of Fiduciary Duty

The elements of Breach of Fiduciary Duty are: 1) existence of a fiduciary duty; 2) the breach of that duty; and 3) damage proximately caused by that breach. (*Mosier v. Southern California Physicians Insurance Exchange* (1998) 63 CA4th 1022, 1044.)

"Partnership is a fiduciary relationship, and partners are held to the standards and duties of a trustee in their dealings with each other. "[I]n all proceedings connected with the conduct of the partnership every partner is bound to act in the highest good faith to his copartner and may not obtain any advantage over him in the partnership affairs by the slightest misrepresentation, concealment,

threat or adverse pressure of any kind.” ’ ’ ’ ’ ” (Agam v. Gavra (2015) 236 Cal. App. 4th 91, 112–13.)

” ‘A partner may not dissolve a partnership to gain the benefits of the business for himself, unless he fully compensates his copartner for his share of the prospective business opportunity.’ ” [Citation.] Such a partnership opportunity may not be appropriated by one partner to the detriment of a copartner even after dissolution.” (Everest Invs. 8 v. McNeil Partners (2003) 114 Cal. App. 4th 411, 424–25.)

Plaintiff has alleged a fiduciary relationship between Wong and Daniel and a breach of the relationship by Daniel taking/withdrawing payments from SI, while not paying Wong the equal amounts under the Agreement. (Strickroth Supp. Decl., Ex. B at pp. 153 – 337; Plaintiff Supp. Decl. ¶¶ 13 – 14, Ex. B.) Plaintiff also alleged Daniel had a fiduciary relationship with Plaintiff through SI after Wong’s death, and that Daniel has breached the relationship by failing to wind up the partnership and instead paying Plaintiff a low value for Wong’s percentage of SI. Finally, Plaintiff contends Daniel has withdrawn large sums of SI’s funds and transferred those funds to his personal accounts without consent or knowledge of Wong/Plaintiff. (Plaintiff Supp. Decl. ¶¶ 12 – 13, 16, Exs. B and C; RTJN, Exs. D – I.)

Defendants did not make any specific opposition as to this COA other than to state the allegation of breaches were made after the statute of limitations (“SOL”) had run. The SOL on a breach of fiduciary duty is four years. (Civ. Proc. Code § 343.) Plaintiff alleged Wong did not receive any disbursements from SI between July 2019 and her death on 09/11/21. Plaintiff would have at least the full four year limitation period from the date of the alleged breach (Civ. Proc. Code § 366.1), which, with the filing of the Complaint on 12/28/22, means any breaches since 12/28/18 would be within the SOL. The disbursements show that between 12/28/18 and 03/30/21 (prior to Wong’s death), Daniel received disbursements of \$103,373.61, while Wong received only \$11,250. (Strickroth Supp. Decl., Ex. B at pp. 153 – 337.)

The COA is not barred by the SOL.

Daniel stated that Wong received disbursement amounts equal to Daniel, however he produced no evidence rebutting the evidence produced by Plaintiff showing Daniel received over four-times more disbursements than Wong. (Daniel Supp. Decl. ¶ 6.) Daniel also stated proceeds from the sale of assets that once belonged to SI have not been comingled with his personal accounts and remain in a separate specific account, but again produced no evidence supporting this contention or rebutting Plaintiffs’ evidence. (Daniel Supp. Decl. ¶ 8.) He also produced no evidence that funds disbursed to him were used for SI and not for personal benefit.

Plaintiff has shown a reasonable probability of prevailing on the merits on this COA.

COA No. 3 – Financial Elder Abuse

Abuse of an elder can be financial based. (Welf. & Inst. Code § 15610.07.) The elements of elder financial abuse are: 1) Plaintiff is 65-years of age or older at the time of the conduct; 2) Defendant took, secreted, appropriated, obtained, or retained real or personal property of Plaintiff for a wrongful use or with intent to defraud, or both; 3) Plaintiff was harmed. (Welf. & Inst. Code § 15610.30.) However, “[b]ad faith or intent to defraud [are] no longer required in elder or dependent adult abuse cases.” (*Stebley v. Litton Loan Servicing, LLP* (2011) 202 Cal. App. 4th 522, 527.)

“Under the Elder Abuse and Dependent Adult Civil Protection Act (Welf. & Inst.Code, § 15600 et seq.), an elder is “any person residing in this state, 65 years or older.” (Welf. & Inst.Code, § 15610.27.) Section 15610.30 broadly defines financial abuse of an elder as occurring when a person or entity “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder” for “a wrongful use or with intent to defraud, or both,” as well as “by undue influence....”` `” (*Paslay v. State Farm Gen. Ins. Co.* (2016) 248 Cal. App. 4th 639, 656.)

Plaintiff contends Wong was more than 65-years of age at all times relevant to the issues in the Complaint. (Complaint ¶ 56.) Plaintiff alleged Daniel took, secreted, appropriated, obtained and/or retained the personal property that belong to Wong during her lifetime, including Wong’ 50% partnership distributions from SI. (Strickroth Supp. Decl., Ex. B at pp. 153 – 337; Plaintiff Supp. Decl. ¶ 14, Ex. B) Daniel is also accused of transferring funds from SI’s accounts to his own personal accounts, which would constitute elder financial abuse. (*Wood v. Jamison* (2008) 167 Cal.App.4th 156, 164-165.) After Wong’s death (Plaintiff Supp. Decl. ¶¶ 13 – 14, Exs. B and C), Defendants allegedly failed to respond to requests of the estate for an accounting, although Daniel states otherwise without any supporting evidence.

Defendants made no real arguments on the merits regarding this COA.

Plaintiff has shown a reasonable probability of prevailing on the merits on this COA.

COA No. 4 – Unjust Enrichment

“[T]he elements for a claim of unjust enrichment: receipt of a benefit and unjust retention of the benefit at the expense of another.” (*Lectrodryer v. SeoulBank* (2000) 77 Cal. App. 4th 723, 726.)

Plaintiff alleged Daniel deprived Wong of any and all distributions since 2019, despite Wong being entitled to 50% share of any distributions from SI. Plaintiff produced evidence supporting Daniel received over four times the distributions that Wong received during her lifetime. (Strickroth Supp. Decl., Ex. B at pp. 153 – 337; Plaintiff Supp. Decl. ¶ 14, Ex. B) As noted, Daniel is also attempting

to assert ownership over the entirety of SI and its assets without an equal distribution to Wong's estate. Again, Defendants produced no opposition to this COA.

Plaintiff has shown a reasonable probability of prevailing on the merits on this COA.

COA No. 6 – Conversion

"Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages....[Citation omitted.]" (*Lee v. Hanley* (2015) 61 Cal. 4th 1225, 1240 ("Lee").) "But where the money or fund is not identified as a specific thing the action is to be considered as one upon contract or for debt and not for conversion." (*Baxter v. King* (1927) 81 Cal. App. 192, 194.) Finally, "While it is true that money cannot be the subject of an action for conversion unless a specific sum capable of identification is involved [Citation], it is not necessary that each coin or bill be earmarked. When an agent is required to turn over to his principal a definite sum received by him on his principal's account, the remedy of conversion is proper." (*Haigler v. Donnelly* (1941) 18 Cal. 2d 674, 681.)

Plaintiff alleged Daniel deprived Wong of any and all distributions since 2019, despite Wong being entitled to 50% share of any distributions from SI. (Strickroth Supp. Decl., Ex. B at pp. 153 – 337; Plaintiff Supp. Decl. ¶ 14, Ex. B) Plaintiff has alleged a specific amount of funds taken by Daniel in an amount over \$6,256,947.26. (Strickroth Decl. ¶ 6.) Plaintiff has also alleged Daniel transferred specific numbers of shares from SI's investment accounts into accounts under Daniel and his wife's names. (*Ibid.*)

Again, Defendants produced no opposition to this COA.

Plaintiff has shown a reasonable probability of prevailing on the merits on this COA.

Interim Harm

Plaintiff indicates she will suffer irreparable harm if Daniel and SI are not enjoined from using, transferring, spending, selling, and/or dissipating any and all assets in SI because otherwise Defendants will continue to abscond or dissipate the remaining assets of SI. (Gee Decl. ¶ 11.) Plaintiff will further suffer irreparable harm if Defendants are not enjoined because without injunctive relief, as it is extremely likely Daniel will continue to drain SI's assets and/or transfer assets Daniel has already taken making it impossible for Plaintiff to recover its 50% interest in SI and its assets. Absent an injunction, Daniel will be free to dispose of assets. Plaintiff argues Daniel will not be harmed by the injunction as he will still be entitled to the 50% of the funds from SI once the lawsuit ends. Daniel will also not be harmed as Plaintiff is informed the remaining assets in SI are low liquidity property such as real property investments. The

		injunction will only prevent Daniel from selling the property before the wind up. Defendants argue an injunction would harm them as it would prohibit the payment of financial obligations related to the remaining real property such as property taxes and maintenance. They also argue there is no imminent harm as some of the alleged bad faith actions took place years ago. However, the injunction would be to prevent Daniel from selling or moving assets away from Plaintiff. Defendants are correct that the scope of the requested injunction would prohibit the payment of the partnerships liabilities. However, in weighing the relative harm, the scale tips in favor of Plaintiff as without the injunction, Daniel will be able to transfer/dispose of assets that might otherwise be Plaintiff's. The Motion is GRANTED as Plaintiff has shown a reasonable probability of prevailing on each of the COA and the relative interim harm favors Plaintiff. The court will grant the injunction as requested; however SI is permitted to use its funds to pay for liabilities incurred for the upkeep of its assets (i.e. property taxes, property management fees, repairs, and investment management fees.) The court orders Plaintiff to lodge an undertaking in the amount of \$10,000 with the court within 15-days of the hearing. (Civ. Proc. Code § 592.) Plaintiff to give notice.
5	Soto v. Garden Grove Unified School District	Before the court is the Motion to Compel a Psychological Examination of Plaintiff, filed by Defendant Garden Grove Unified School District ("Defendant" or District"). As set forth below, the motion is GRANTED. Code of Civ. Proc. § 2032.310(a) states "If any party desires to obtain discovery by a physical examination other than that described in Article 2 (commencing with Section 2032.210), or by a mental examination, the party shall obtain leave of court." Per CCP § 2032.320(a), a motion for an examination shall be granted "only for good cause shown." Here, Defendant seeks to compel Plaintiff J.N. Soto to appear for a psychiatric (mental) examination on April 29, 2025 at 9:00 a.m. by Dr. Anita Herrera Hamilton, at a mutually agreeable location near Plaintiff in Orange County. The neuropsychological evaluation will take approximately 5-6 hours (not to exceed 8 hours) to conduct and consist of a history taking and observation, as well as administration of a number of psychological and neuropsychological tests. Defendant asserts good cause, as Plaintiff's mental and psychological conditions are in controversy. Plaintiff agrees that a mental examination is warranted, but the parties disagree on the